

22STCV15510 22STCV15510

County: los-angeles

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Case Number: 22STCV15510 Hearing Date: September 1, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

INDIA'S CLAY PIT NOHO, INC.,

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC,

Defendant.

Case No.:

25STCV33101

Hearing Date:

September 1, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF INDIA'S

CLAY PIT NOHO, INC.'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

Background

Plaintiff India's Clay Pit NoHo, Inc. ("Plaintiff") filed this lemon law action on November 12, 2025, against Defendant BMW of North America, LLC ("BMW"), alleging two causes of action under the Song-Beverly Act for (1) breach of implied warranty of merchantability and (2) breach of express warranty.

Plaintiff now moves to file a First Amended Complaint ("FAC"). BMW opposes. Plaintiff replied.

Legal Standard

Pursuant to Code of Civil Procedure section 473, subdivision (a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial. ((Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." ((Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." ((Morgan v. Superior Court of Los Angeles County (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." ((Solit v. Tokai Bank (1999) 68 Cal.App.4th 1435, 1448.) However, "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." ((Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 939-940.) In most cases, the factors for timeliness are: (1) "lack of diligence in offering the amendment after knowledge of the facts" and (2) "effect of the delay on the adverse party." ((Id. at p. 940.)

Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature; however, the Court does have discretion to deny leave to amend where “a proposed amendment [fails] to state facts sufficient to constitute a cause of action” and “the insufficiency could not be cured by further appropriate amendment.” (California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281 (California Casualty), overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390, 403-406.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. ((Cal. Rules of Court, rule 3.1324(a)(1).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Finally, “[a] separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b), emphasis added.)

Discussion

Plaintiff seeks leave to amend the Complaint “to add three causes of action for Failure to Maintain Sufficient Service and Repair Facilities and Failure to Complete Repairs Within 30 Days, both under Civil Code section 1794, and for violation of Civil Code Section 1750 et seq. of the Consumers Legal Remedies Act.” (Notice of Mot., 1:28-2:3.)

A.

Procedural Requirements

The Court finds that

Plaintiff complied with the procedural requirements of California Rules of Court, rule 3.1324. Plaintiff seeks to add three causes of action to the Complaint, and Plaintiff’s counsel explains that “[t]he Proposed First Amended Complaint, adding three new causes

of action, is necessary and proper to allow Plaintiff to recover all damages they suffered from Defendants' wrongful acts related to the subject matter of this action within a single lawsuit. Plaintiff did not allege violation of the CLRA, Failure to Maintain Sufficient Service and Repair Facilities or Failure to Complete Repairs Within 30 Days (all based upon Defendants' denial of warranty service to Plaintiff) because said violations occurred after Plaintiff filed and served the original Complaint." (Barry Decl., ¶ 7.)

Plaintiff's counsel

attaches the proposed FAC as Exhibit 1 to the declaration. Plaintiff's counsel also includes the redlined FAC to show the differences from Plaintiff's Complaint. (Barry Decl., Ex. 2.) In the moving papers, Plaintiff explains each proposed amendment. (See Mot., 6:17-7:16.) Accordingly, Plaintiff meets the procedural requirements necessary for leave to be granted.

B.

Substantive Arguments

Plaintiff's moving papers

assert that adding three new causes of action is necessary because "Plaintiff was advised that no warranty repairs would be conducted unless they dropped or resolved their legal claims. At the time of each these denials, the Vehicle remained within the original express warranty period — specifically, within the four (4) year or 50,000-mile limited warranty provided at the time of lease. (FAC, ¶ 13.) All three of Plaintiff's new causes of action are based upon these events." (Mot., 8:8-12.)

BMW's opposition requests

that the Court limit the temporal scope of Plaintiff's new allegations to events following Plaintiff's filing of its Complaint on November 12, 2025. Specifically, BMW contends that "Plaintiff's allegations on this point follow the filing of its Complaint, and should not include material that precedes said Complaint. BMW NA will face undue prejudice if leave is granted for amendments that include data from before the filing of Plaintiff's Complaint." (Opp., 3:18-21.) BMW also asserts that the allegations for Plaintiff's CLRA cause of action "relate to events which preceded November 12, 2025, and would have [been] known to Plaintiff at the time the Complaint was filed. Plaintiff contends that the reason this amendment is justified and leave should be granted is because the changes are based upon events that transpired after the Complaint was filed. If that is accurate, any CLRA amendment to Plaintiff's Complaint should be limited

in temporal scope to events that transpired following the filing of Plaintiff's Complaint on November 12, 2025." (Opp., 4:7-12.)

Plaintiff's reply

addresses BMW's contention, asserting that "[o]n the surface, Defendant's argument to limit the temporal scope of Plaintiff's new causes of action to events following Plaintiff's filing of its Complaint on November 12, 2025, sounds reasonable until one realizes that it overlooks the full context in which the events alleged transpired." (Reply, 2:26-28.) Plaintiff asserts that "[t]he reason Defendant's argument to limit in temporal scope Plaintiff's new causes of action fails outright is because facts that occurred after the filing of the Complaint on November 12, 2025 are what triggered the significance of Defendant's prior representations at the time of the lease transaction and otherwise prior to the filing of the Complaint. Plaintiff had no way of knowing, prior to the November 12, 2025 filing of the Complaint, that Defendant later would additionally dishonor its prior representations and obligations and violate more laws. Thus, the entire sequence of factual events only became significant when Defendant violated more laws after November 12, 2025. Thus, the entirety of the factual sequence must be allowed to be included." (Reply, 3:12-19.)

BMW fails to demonstrate that

it will experience real prejudice if the Court does not deny or limit Plaintiff's request for leave to file the proposed FAC. BMW claims prejudice, but does not explain how or why it will be prejudiced. Moreover, Plaintiff's reply adequately refutes BMW's argument, demonstrating that it would be unreasonable to limit the scope of the FAC. Accordingly, because Plaintiff complied with the necessary procedural requirements and BMW does not demonstrate cognizable prejudice, the Court grants Plaintiff's motion for leave to file the FAC.

Conclusion

Based on the foregoing, Plaintiff's motion for leave to file a First Amended Complaint is GRANTED.

Plaintiff is ordered to give notice of this Order.

DATED: September 1, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court